

“A motion to compel (or to quash) production of documents or tangible things at a deposition must be accompanied by a separate statement setting forth the particular documents or demand at issue, the responses received, and the reasons why production should be compelled.”(Cal. Rules of Court, rule 3.1345(a).) However, a separate statement is not required “[w]hen no response has been provided to the request for discovery[.]” (*Id.* at (b).) As such, Plaintiff’s argument to deny the motion to quash is unavailing because there is no evidence of a response to the subpoena.

On the merits, Silvercrest again relies on *Pacers*. Again, *Pacers* is inapplicable because Silvercrest is not a natural person. (See *United States v. White* (1944) 322 U.S. 694, 699; *Curcio v. United States* (1973) 354 U.S. 118, 122; *Bellis v. United States* (1974) 417 U.S. 85, 100-101.) Moreover, the 5th Amendment privilege does not protect against the production of documents possessed by third parties. (*Couch v. United States* (1973) 409 U.S. 322, 323-324 [5th amendment privilege unavailable to prevent the production of evidence from another party].) “A party is privileged from producing the evidence, but not from its production.” (*Johnson v. United States* (1913) 228 U.S. 457.)

Defendant Silvercrest Advertising’s Motion to Quash Subpoenas DENIED.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2509974	LEWIS VS CITY OF CATHEDRAL CITY	MOTION FOR LEAVE TO AMEND 1ST AMENDED COMPLAINT OF CHRISTIANA LEWIS BY CHRISTIANA LEWIS

Tentative Ruling:

No Opposition filed by Defendants.

Plaintiff’s Motion for Leave to File Second Amended Complaint GRANTED. The Second Amended Complaint shall be deemed filed as of the date of this order.

Case Management Conference and OSC rescheduled from 10.26.26 to 12.01.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2603512	KOHEN VS ARIANA 63, L.P.	DEMURRER ON COMPLAINT OF MICHAEL KOHEN AS TO 1ST, 2ND, 3RD, 4TH, 5TH, 7TH, 8TH, 9TH AND 10TH CAUSES OF ACTION OF COMPLAINT BY ARIANA 63, L.P., INVESTMENT CONCEPTS, INC., ARIANA AT EL PASEO APARTMENT HOMES

Tentative Ruling: No tentative ruling.

Section 430.41 (a) states in relevant part: “Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer **in person or by telephone or by video conference** with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the

objections to be raised in the demurrer. If an amended complaint, cross-complaint, or answer is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a demurrer to the amended pleading.” Here, the evidence is that Plaintiff refused to comply with his obligation to meet and confer as required. It may well be that a meet and confer will not resolve this demurrer. The likelihood of a resolution is, however, irrelevant. The California Legislature determined that the meet and confer process was sufficiently important that it be codified into law. Even the items to be discussed as part of the meet and confer process are set out in detail in Section 430.41 subdivision (a), subsections (1) and (2). The Court does not intend to allow parties to determine when, and under what circumstances, they will comply with the law. Additionally, counsel are officers of the court and members of the bar. Separate and apart from any legal obligation to comply with the subject statute, they have an ethical obligation to do so.

After meeting and conferring, demurring party shall, at least 10 days before the continued hearing date set above, do one of the following:

- 1) Vacate the hearing on the motion/demurrer; or
- 2) File with the Court a joint declaration of all counsel/parties stating the means by which the parties met and conferred and identifying the specific outstanding disputes that the parties have not resolved. The declaration should include a brief description of (i) each issue or issues to be resolved and (ii) the parties’ respective positions regarding each issue. Each issue should be described in a single paragraph, and each party’s position should be described in no more than two paragraphs per issue.
- 3) File with the Court a sworn declaration as to efforts made to contact the Plaintiff to complete meet and confer, if Plaintiff refuses to respond or cooperate.

The court will not accept further briefing.

The parties’ failure to engage in a good faith meet and confer process or failure to file a joint declaration as ordered will result in sanctions under Code of Civil Procedure section 177.5.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2603512	KOHEN VS ARIANA 63, L.P.	MOTION TO STRIKE COMPLAINT OF MICHAEL KOHEN BY ARIANA 63, L.P., INVESTMENT CONCEPTS, INC., ARIANA AT EL PASEO APARTMENT HOMES

Tentative Ruling: No tentative ruling. Hearing is continued for proper meet and confer.